

23PR00466 Estate of Virginia Morales

County: santa-barbara

Division: Decedent's Estate

Department: 3 SM-Cook

Hearing date: 2023-11-15

Motion: Spousal Property Petition

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/23pr00466>

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Tentative Ruling: Estate of Virginia Morales

Case Number

23PR00466

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 11/15/2023 - 08:30

Nature of Proceedings

Spousal Property Petition

Tentative Ruling

Appearances required. The following must be submitted:

Supplement/Declaration of Facts. A supplement to the petition alleging facts that should have been alleged in attachment 7a:

Date and place of marriage (Local Rule 1761, subd. (a))

Whether decedent owned any real and personal property on date of marriage, and if so, a description and approximation of values (Ibid.)

For each asset for which a determination that it pass or be confirmed to the surviving spouse, a description of the manner in which the asset was acquired by decedent, including source of funds or loans, title to asset, etc. (Ibid.)

Any additional facts upon which the claim that property is community or quasi-community property is based. (Ibid.)

If Decedent Died Testate: Copy of the will and any codicil "shall" be attached. (PC § 13651, subd. (b).)

If Decedent and spouse had a written, non pro rata agreement: Copy of the agreement "shall" be attached. (PC § 13651, subd. (c).)

If Decedent Died Intestate: 1) facts upon which the petitioner bases the allegations that all or part of the estate of deceased spouse is property passing to the surviving spouse, AND 2) a description of any interest in the community property or quasi-community property, or both, which the petitioner requests the court to confirm to the surviving spouse as belonging to the surviving spouse pursuant to § 100 or 101 (PC § 13651, subd. (a)(3)-(a)(4).)

Supplement re: Property Description. A supplement to the petition must be submitted that alleges sufficient facts to describe the property:

Allegations must "list and describe in detail the property to be distributed, in the body of the petition or in an attachment that is incorporated in the petition by reference." (CRC, Rule 7.651, subd. (a))

Allegations include the amount of cash on hand (CRC, Rule 7.651, subd. (b)(1))

Allegations state whether promissory notes are secured or unsecured, and describe in detail the security interest of any secured notes (CRC, Rule 7.651, subd. (b)(2))

Allegations include the complete description of each individual security held in "street name" in security brokers' accounts (CRC, Rule 7.651, subd. (b)(4))

Allegations include the character of the property to be distributed (e.g. separate, community, or quasi-community) (CRC, Rule 7.652, subd. (a)(1); see also PC § 8850)

IF community/quasi-community property is to be distributed, allegations include whether or not property is the decedent's one-half interest only, or the entire interest of the decedent and the decedent's spouse (CRC, Rule 7.652, subd. (a)(2))

If the documents curing these deficiencies are not processed by 8:00 a.m. on November 13, 2023, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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